<u>May 8, 2026, Civil Law & Motion Tentative Rulings</u>

1. CU0002491 Malin Kumar Ram vs. Rodney Andrews, et al.

Defendant Rodney Andrew's January 29, 2026, demurrer is sustained as to counts three, four, five, six, seven, eight, and nine and overruled as to count one. Plaintiff is granted leave to amend within ten (10) days of this Court's order.

<u>Legal Standard</u>

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. A court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff's claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.,* 148 Cal.App.4th at 113-114.

"If a complaint does not state a cause of action, but there is a reasonable possibility that the defect can be cured by amendment, leave to amend must be granted." *Milligan v. Golden Gate Bridge Highway & Transportation Dist.* (2004) 120 Cal.App.4th 1, 6

<u>First Cause of Action – Fraud/Intentional Misrepresentation</u>

Defendant Andrews argues the Complaint fails to allege fraud with the requisite specificity as to Andrews. The Court does not agree.

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, *i.e.*, to induce reliance; (d) justifiable reliance; and (e) resulting damage." *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638. "In California, fraud must be pled specifically; general and conclusory allegations do not suffice. … [¶] This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.' " *Id.* at 645 (quotation marks and citations omitted).

At bar, the Complaint generally alleges: Defendant Rodney Andrews approached Plaintiff in November 2022 regarding an investment opportunity involving flipping the Subject Property at issue, promising Plaintiff would have 100% ownership of the property and would receive $60,000 of a projected profit after sale of the property, with Plaintiff and Defendant Rodney Andrews acting as partners in construction and paying the monthly mortgage. Complaint ¶¶ 13-

16. A Grant Deed was recorded to Defendant Isaiah Andrews for 75% and Plaintiff for 25% for the purchase price of $750,000, contrary to Defendant Rodney Andrews' representations that Plaintiff would receive 100% ownership. Complaint ¶¶ 20-21. Defendants (generically) fraudulently induced Plaintiff to transfer his 25% interest to Defendant Isaiah Andrews leaving Plaintiff with no title interest but liable for the $700,000 loan, and subsequently Defendant Rodney Andrews failed to remain current on the monthly mortgage loan payments. Complaint ¶¶ 23, 29. For the fraud claim itself, Plaintiff reiterates that Defendants Rodney and Isaiah Andrews falsely represented Plaintiff would receive 100 % ownership, describing when and where those representations were made. Complaint ¶ 36, 37. Finally, Plaintiff alleges that in reliance on these representations he contributed approximately $34,000 toward the purchase and assumed liability on the $700,000 loan.

This count adequately delineates who made specific representations (including when, where, to whom, and by what means) as well as reasonable reliance. The demurrer as to this cause of action is overruled.

In addition, the demurrer as to the punitive damages allegation is overruled. "[A] general demurrer cannot be used to test the adequacy of punitive damage allegations." *Sanowicz v. Bacal* (2015) 234 Cal.App.4th 1027, 1036, n. 6, *citing Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 164.

<u>Third and Fourth Causes of Action – Constructive Trust/Restitution and Unjust Enrichment</u>

Defendant argues the constructive trust and unjust enrichment/restitution theories are inadequately pled, to wit: they fail to adequately allege facts establishing specific identifiable property or proceeds held by the specific Defendant to the demurrer, wrongful acquisition or detention by said Defendant, and a basis for equitable relief against this Defendant. The Court agrees.

"A constructive trust is an equitable remedy that compels a wrongdoer—one who has property or proceeds to which he is not justly entitled—to transfer same to its rightful owner." *Shoker v. Superior Court of Alameda County* (2022) 81 Cal.App.5th 271, 278. "[W]hen legal title has been acquired through fraud any number of remedies are available and appropriate," including making legal title holder constructive trustee for the benefit of the defrauded equitable titleholder. *Warren v. Merrill* (2006) 143 Cal.App.4th 96, 114.

An unjust enrichment claim is not a cause of action *per se*. *Jogani v. Superior Court* (2008) 165 Cal.App.4th 901, 911. "Rather, it is a general principle underlying various doctrines and remedies, including quasi-contract." *Ibid.* The elements of a quasi-contract unjust enrichment claim are: "receipt of a benefit and [the] unjust retention of the benefit at the expense of another." *Peterson v. Cellco Partnership* (2008) 164 Cal.App.4th 1583, 1593.

At bar, the Complaint includes the general allegations previously noted. It then alleges that: Defendants Rodney Andrews and Isaiah Andrews acquired and retained 100% possession and or title through fraudulent inducement. Defendants (generically) used Plaintiff's contribution for closing costs ($34,000) and loan proceeds ($700.000) "to acquire and hold title to the Property for their own benefit" rather than Plaintiff's benefit. Complaint ¶¶ 67-68. The Complaint then seeks to: impose a constructive trust against Defendant Isaiah Andrews requiring reconveyance of 75% title to Plaintiff and restitution of all monies obtained by Defendants. Complaint ¶¶ 59, 61, 70.

These allegations are insufficient. Plaintiff has failed to allege any details as to what specific purported wrongdoing by defendant Rodney Andrews gives rise to the requested relief. In the absence of allegations of the "actionable wrong, there is no basis for relief" under a theory of unjust enrichment or imposition of a constructive trust. *See Hill v. Roll Intl Corp.* (2011) 195 Cal. App. 4th 1295, 1307 (no basis for unjust enrichment relief absent actionable wrong). The demurrer as to the third and fourth cause of action is sustained.

Plaintiff asserts, without detail, that any deficiency may be cured by amendment, but makes no showing of how cure is reasonably possible. This notwithstanding, the Court will allow the same given the liberality generally associated with amendment of pleadings.

<u>Fifth Cause of Action – Breach of Contract</u>

Defendant argues the fifth cause of action for breach of oral contract fails because it is barred by the statutes of limitations and frauds, and does not clearly allege the essential contract terms (*i.e.,* the contracting parties, the manner of breach by the moving defendant, or the resulting damages attributable to said defendant). The Court agrees.

First, "[a]n agreement for the sale of real property or an interest in real property comes within the statute of frauds." *Secrest v. Security National Mortgage Loan Trust 2002-2* (2008) 167 Cal.App.4th 544, 552; Civ. Code § 1624(a)(3). "A contract coming within the statute of frauds is invalid unless it is memorialized by a writing subscribed by the party to be charged or by the party's agent," *citing* Civ. Code § 1624.

Additionally, pursuant to Code of Civil Procedure section 339(1), "an action upon a contract, obligation or liability not founded upon an instrument of writing" must be commenced "[w]ithin two years."

At bar, the alleged oral contract appears to relate to an interest in real property and was made on or about December 2022. Complaint ¶ 72. That being the case, the agreement appears to be invalid under the statute of frauds and any legal action related thereto time-barred (given the complaint was filed in December 2025, after expiration of the limitations period in December 2024). Lastly, the Complaint fails to allege the manner of breach by Defendant Rodney Andrews.

Plaintiff again claims he can cure any defects. The Court will sustain the demurrer with leave to amend given the general preference to liberal amendment of pleadings.

<u>Sixth Cause of Action – Breach of Fiduciary Duty</u>

Defendant argues the Complaint fails to state facts sufficient to allege a cause of action for breach of fiduciary duty against Defendant because there are no facts alleged that any breaches of fiduciary duty were committed by Defendant Rodney Andrews specifically. The Court agrees.

"A fiduciary relationship is ' " 'any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other party. Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter's knowledge or consent. . . .' " ' " *Wolf v. Superior Court* (2003) 107 Cal.App.4th 25, 29 (internal citations omitted).

At bar, the Complaint alleges "Defendant RODNEY ANDREWS and CHARLES HASBUN" knowingly acted "as Plaintiff's financial consultant, investment adviser, and partner in the acquisition and financing of the real property at issue," and "Defendant" (without specifying which defendant) consistently represented to Plaintiff he had "special expertise in real estate investment, financing, and project development, and that he would act for Plaintiff's benefit in structuring the transaction, securing financing, managing the investment, and protecting Plaintiff's interests." Complaint ¶ 80. The Complaint goes on to allege various breaches of fiduciary duty, again without specifying which Defendant allegedly engaged in which breach. Complaint ¶ 83.

Here, the allegations do not clearly delineate the nature of the fiduciary relationship between Plaintiff and Defendant Rodney Andrews, or how this Defendant specifically breached any of his purported fiduciary obligations. The demurrer as to the sixth cause of action is sustained.

Plaintiff states he can distinguish allegations regarding Rodney Andrews and Isaiah Andrews on amendment to cure any deficiency. Even though the requisite showing as to leave is lacking, the Court concludes that there is some reasonable possibility of cure and grants leave to amend.

<u>Seventh Cause of Action – Conversion</u>

Defendant argues the Complaint fails to clearly identify the personal property allegedly converted by the moving defendant as well as facts showing the same exercised wrongful dominion over it. The Court agrees in limited part.

"Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages." *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240. "To prove a cause of action for conversion, the plaintiff must show the defendant acted intentionally to wrongfully dispose of the property of another." *Duke v. Superior Court* (2017) 18 Cal.App.5th 490, 508. "The tort of conversion applies to personal property, not real property." *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1295.

At bar, the Complaint alleges Plaintiff contributed approximately $34,000 towards the acquisition of the property; however, he fails to sufficiently allege how the moving defendant acted intentionally to wrongfully dispose of such. The demurrer as to this cause of action is sustained.

Plaintiff suggests (in a conclusory fashion) that any deficiency may be cured. The Court will permit amendment given the possibility of cure.

<u>Eighth Cause of Action – Violation of Bus. & Prof. Code Section 17200</u>

Defendant argues Plaintiff's Complaint makes allegations to all defendants collectively as to a "scheme" but does not identify what the moving defendant specifically did, when they did it, what they said, and how Plaintiff relied on such. The Court agrees this claim is inadequately pled.

"A plaintiff alleging unfair business practices … must state with reasonable particularity the facts supporting the statutory elements of the violation." *See Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 619; *see also Mueller v. San Diego Ent. Partners, LLC*, 260 F. Supp. 3d 1283, 1299 (S.D. Cal. 2017) (dismissing UCL claim where plaintiff "merely" alleged "'[b]y reasons of Defendants' fraudulent, deceptive, and unfair conduct as herein alleged, Defendants have violated California Business and Professions Code section 17200'").

Here, Plaintiff alleges that "Defendants" (generically) engaged in seven purported unlawful, unfair and fraudulent practices. Complaint ¶ 97. Plaintiff, however, has failed to allege with any particularity what unlawful practices were conducted or promoted by defendant Rodney Andrews specifically. The demurrer as to the eighth cause of action is sustained.

Plaintiff summarily contends that any deficiency may be cured. Even though the requisite showing has not been made, the Court will permit amendment.

<u>Ninth Cause of Action – Conspiracy</u>

Defendant argues the Complaint lacks specific allegations for any properly plead underlying tort against Rodney Andrews, and as such, the conspiracy claim fails. The Court agrees.

> "A civil conspiracy however atrocious, does not per se give rise to a cause of action unless a civil wrong has been committed resulting in damage." *Unruh v. Truck Insurance Exchange* (1972) 7 Cal.3d 616, 631 "The elements of an action for civil conspiracy are the formation and operation of the conspiracy and damage resulting to plaintiff from an act or acts done in furtherance of the common design. ... In such an action the major significance of the conspiracy lies in the fact that it renders each participant in the wrongful act responsible as a joint tortfeasor for all damages ensuing from the wrong, irrespective of whether or not he was a direct actor and regardless of the degree of his activity."

Doctors' Co. v. Superior Court (1989) 49 Cal.3d 39, 44 (parentheses and citations omitted).

At bar, the Complaint alleges "Plaintiff was harmed by the underlying tortious conduct committed by Defendants – including fraud, intentional misrepresentation, conversion, unjust enrichment, and breach of fiduciary duty – and that each Defendant named in this cause of action is liable as a co-conspirator to those torts." Complaint ¶ 104. The Complaint further alleges, "[t]wo or more Defendants," including Defendant Rodney Andrews, "formed and operated a coordinated agreement[] to commit the wrongful acts alleged herein." Complaint ¶ 107. Plaintiff also alleges Defendants' "cooperation and unity of action show a 'meeting of the minds,' " and that Defendant Rodney Andrews induced the investment and loan. Complaint ¶ 111.

Here, the cause of action for civil conspiracy alleges tortious conduct including fraud, intentional misrepresentation, conversion, unjust enrichment, and breach of fiduciary duty, but fails to allege sufficient facts as to what act or acts were performed by Defendant Rodney Andrews that furthered the common design or conspiracy in connection with these claims. The demurrer is well taken.

For the reasons noted previously, the Court will permit leave to amend.

2. CU0002221 Bill Sinor, Jr. vs. B & W Resorts, Inc., et al.

On the Court's motion, the hearing on Defendants' motion to compel responses to Special Interrogatories, Set One and for sanctions is continued to Friday, June 5, 2026, at 10:00 a.m., in Department 6, and the parties are directed to meet and confer as specified herein.

<u>Legal Standard</u>

Under Code of Civil Procedure section 2030.300(a), a court may order a party to serve a further response to an interrogatory when the court finds: "(1) An answer to a particular interrogatory is evasive or incomplete[;] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate[; or] (3) An objection to an interrogatory is without merit or too general."

Upon receipt of a response, the propounding party may move to compel further response if it deems an answer to a particular interrogatory is evasive or incomplete, an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general. Code Civ. Proc. § 2030.300(a). Any motion to compel further answers to interrogatories must be filed within forty-five (45) days of receipt of response, unless the parties agree to extend the time in writing. Code Civ. Proc. § 2030.300 (c). When such a motion is filed, the Court must determine whether responses are sufficient under the Code, and the burden is on the responding party to justify any objections made and/or its failure to fully answer the interrogatories. *Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220-21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.

<u>Timeliness</u>

Plaintiff argues Defendants' motion is untimely. Not so.

Pursuant to Code of Civil Procedure section 2030.300(c), notice of a motion to compel further responses to interrogatories must be given within 45 days of service of the verified response.